

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 07/21/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: L24-11721
CASE NAME: CRESER CAPITAL FUND VS. MICHELLE FRANCIS
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

Law & Motion

2. 9:00 AM CASE NUMBER: L22-04110
CASE NAME: VELOCITY INVESTMENTS LLC VS. NICOLE MUNOZ
*HEARING ON MOTION IN RE: NOTICE OF MOTION & MOTION TO VACATE VOID JUDGMENT FILED
BY DEF. ON 04/08/2026
FILED BY: MUNOZ, NICOLE

***TENTATIVE RULING**

Defendant filed, on 4/8/26, a Motion to Set Aside Default Judgment. There is no Response, and Defendant has filed proof that they served Plaintiff with notice of the Motion and hearing.

Background

Defendant seeks this ruling from the court under Section 473(d) of the CCP, contending that they were not actually serviced with service of process, and further claiming that there is no time limit within which a defendant can seek relief under this statute.

Defendant specifically claims that they were not served with process because they were not living at the address listed on the proof of service, which was filed by Plaintiff on 2/15/23.

Defendant already attempted to seek relief under the theory of lack of notice but moved for that relief under Section 473.5 of the CCP. That motion was heard by this court on 4/7/26 and denied. This court found that Defendant was time-barred from such relief, since judgment had been entered more than two years before the filing of the motion.

It appears Defendant is making the same claim but is attempting to use a different vehicle.

Analysis

Authority for a court to set aside a default judgment lies in at least two different statutes of the CCP.

Section 473.5 of the CCP permits the court to set aside a default judgment where it finds that the defendant was not given actual notice of the process. There is a limitation within which Defendant can seek relief under this section, however, and that is no later than two years after the entry of the default judgment. (Section 473.5(a) of CCP.)

Section 473 of the CCP also grants this power. When a judgment was not the result of the party's mistake, negligence, inadvertence or surprise, the court can still grant a request to set aside a default judgment if that the judgment is otherwise void. (See Sections 473(b) and 473(d).) While requests hinging on reasons of mistake or inadvertence have time limitations of 180 days, those for a void judgment do not have such a limitation.

However, what renders a judgment void such that it falls within the purview of Section 473(d) is relatively narrow.

"After six months ... an otherwise valid judgment may only be set aside for extrinsic fraud or mistake. Extrinsic fraud occurs when a party is deprived of his opportunity to present his claim or defense to the court, where he was kept in ignorance or in some other manner fraudulently prevented from fully participating in the proceeding. Examples of extrinsic fraud are: concealment of the existence of a community property asset, failure to give notice of the action to the other party, convincing the other party not to obtain counsel because the matter will not proceed (and it does proceed) ... Extrinsic mistake involves the excusable neglect of a party. When this neglect results in an unjust judgment, without a fair adversary hearing, and the basis for equitable relief is present, this is extrinsic mistake. Reliance on an attorney who becomes incapacitated, or incompetence of the party without

appointment of a guardian ad litem, are examples of extrinsic mistake. (*In re Marriage of Varner* (1997) 55 Cal.App.4th 128, 140 (superseded by statute only in matters of family law).)

The only plausible theory for Defendant in the instant matter would be that the lack of actual notice, assuming it is true, resulted in excusable neglect, which qualifies as excusable mistake under Section 473(d), and thus permits Defendant to request a set aside at any time.

But this court finds such a construction of the statute to be incorrect. First, a lack of notice was certainly not one of the examples listed in *Verner*, but more importantly, to lend the statute Defendant's interpretation would be to make CCP 473.5 superfluous. What would be the necessity of CCP 473.5 and its time limitation when a defendant can simply make the identical claim at any time under CCP 473(d)? **This clearly was not the intent of the legislature and would contravene the canons of statutory interpretation.**

This court finds that a default judgment where there was no actual notice to the defendant, but the defendant failed to raise the claim within two years of the date of entry of default, does not qualify as a void judgment under Section 473(d).

Disposition

Defendant's Motion is denied.

Court to issue order.

3. 9:00 AM CASE NUMBER: L24-06648

CASE NAME: LVNV FUNDING LLC VS. GABRIELLA REYNA

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT FILED BY PLTF. ON 04/07/2026

FILED BY: LVNV FUNDING LLC

TENTATIVE RULING:

Background

Plaintiff filed, on 4/7/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The Motion and accompanying documents were served by mail to the address where Plaintiff had served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a